

# Electronic Commerce (E-commerce) Act, 2024

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An Act made to make provisions relating to Electronic Commerce (E-Commerce)

Preamble: Whereas, it is desirable to make legal provisions relating to regulating, systematizing and making reliable commercial transactions of goods or services through information technology,

The Federal Parliament has enacted this Act. Chapter-1

Preliminary

1. Short Title, Commencement and Extent: (1) This Act may be called the "Electronic Commerce (E-Commerce) Act, 2025".

(2) This Act shall commence on the thirty-first day from the date of its certification.

(3) This Act shall apply throughout Nepal and shall also apply to any person residing anywhere outside Nepal who makes goods or services available in Nepal through electronic commerce. 2. Definitions: Unless the subject or context otherwise requires, in this Act,-

(a) "Consumer" means a person or entity who consumes or uses any goods or services pursuant to this Act.

(b) "Contract" means a contract pursuant to Section 7.

(c) "Buyer" means any person or entity who purchases any goods or services pursuant to this Act, and the said term also denotes the representative of such person.

(d) "Carrier" means a person, firm, company or entity employed by a businessperson for the purpose of transporting goods, and the said term also denotes the representative of such person, firm, company or entity.

(e) "Inspecting Officer" means an inspecting officer appointed or designated pursuant to the prevailing Federal law relating to consumer protection.

(f) "Seller" means a person, firm, company or entity who makes goods or services available for sale to an intermediary businessperson pursuant to this Act, and the said term also denotes a list-based electronic commerce businessperson.

(g) "Intermediary Businessperson" means a person, firm, company or entity who facilitates the sale of a seller's goods or services to a buyer through an electronic platform.

(h) "Ministry" means the Ministry of Industry, Commerce and Supplies of the Government of Nepal.

(i) "Director General" means the Director General of the Department.

(j) "Goods" means substances made from goods consumed or used by a consumer or a mixture of goods so as not to cause harm, damage or any kind of negative effect on health, and the said term also denotes raw materials, colors, fragrances or chemicals used in the manufacture of such goods.

(k) "Electronic Platform" means a system created for the purpose of transacting goods or services by collecting, transmitting or storing information through means including websites, applications, software, internet, intranet, social media marketplaces using computers, mobile phones or electronic devices of a similar nature.

(l) "Electronic Commerce (E-Commerce)" means the process of purchasing or selling any goods or services through an electronic platform.

Provided that if an electronic platform is used only to provide information about or promote goods or services, it shall not be deemed to have conducted electronic commerce (E-commerce).

(m) "Department" means the Department of Commerce, Supplies and Consumer Protection of the Government of Nepal.

(n) "Businessperson" means an intermediary businessperson or a list-based electronic commerce businessperson.

(o) "List-Based Electronic Commerce Businessperson" means a firm, company or entity who prepares a list of goods or services owned by it and sells goods or services from such list directly to consumers through an electronic platform.

(p) "Service" means electricity, drinking water, telephone, information technology, health, education and consultancy, transportation, tourism, entertainment, transport, drainage maintenance, banking, insurance or other services of a similar nature, and the said term also denotes legal, auditing, medical or engineering services. Chapter-2

## Operation of Electronic Commerce

3. Persons Who May Conduct Electronic Commerce: (1) Any firm, company or entity registered and authorized to trade in goods or services pursuant to the prevailing law may conduct electronic commerce subject to this Act.

(2) Notwithstanding anything contained in Sub-section (1), goods or services the purchase or sale of which through electronic means is prohibited by the prevailing law or by the Government of Nepal by publishing a notice in the Nepal Gazette shall not be purchased or sold through such means. 4. Electronic Platform to be Established: (1) Every businessperson conducting electronic commerce shall establish an electronic platform.

Provided that a micro entrepreneur or a similar household entrepreneur shall not be prevented from conducting electronic commerce using another electronic platform. (2) In the platform pursuant to Sub-section (1), the businessperson shall mention at least the following details so that the buyer can make an informed decision at any time regarding their trade or business:- (a) Name of the electronic platform, (b) Name, address, registering authority and registration certificate number of the business, (c) Details of the registered office, head office, and branches and outlets, if any, of the businessperson, (d) Details of a separate license obtained to operate a specific type of business, if any, (e) Details of whether the business is intermediary or list-based electronic commerce, (f) Value Added Tax registration number or Permanent Account Number, (g)

Email, telephone, mobile number, telefax, social media address (link) for contacting the businessperson, and designated email, telephone and mobile number for customer service, (h) Email, telephone or mobile number and address of the person or unit responsible for hearing complaints, and (i) Listing number obtained after being listed in the electronic commerce portal pursuant to Section 5. (3) If there is any change in the details pursuant to Sub-section (2), the businessperson shall update the details on their electronic platform within forty-eight hours of such change. (4) The details pursuant to Sub-section (2) shall be mentioned in a complete, clear and easily accessible manner for the consumer. 5.

**Listing to be Done:** (1) After a businessperson has established an electronic platform pursuant to Section 4, they shall submit an application through electronic means to the electronic commerce portal established by the Department for listing with the following details:- (a) Name, address, registering authority and registration certificate number of the business, (b) In the case of a businessperson registered as a private firm, the name and identity details of the relevant proprietor; in the case of a partnership firm, the partners; and in the case of a company or institution, the name and identity details of the director of the company or institution, (c) Clear description of the businessperson's own business, (d) Value Added Tax registration number or Permanent Account Number, (e) Telephone number, email, social media address (link) and contact address of the businessperson, (f) If there are branches or outlets, their number and location, and (g) Other details mentioned in the electronic portal. (2) A businessperson who is already operating electronic commerce at the time of commencement of this Act shall submit an application for listing in the electronic portal pursuant to Sub-section (1) within three months from the date of commencement of this Act. (3) Within seven days from the date of receipt of an application for listing in the electronic portal pursuant to Sub-section (1) or (2), the Department shall provide information with the listing number of such platform to the concerned businessperson through electronic means. (4) After listing pursuant to Sub-section (3), if the listed businessperson adds or removes any of their branches or outlets, they shall update the details in the electronic portal within seven days from the date of such addition or removal. 6.

**Details to be Disclosed:** The businessperson shall disclose the following details regarding the goods or services to be transacted electronically on the electronic platform:- (a) Details including the name, nature, design, trademark, shape or image or combination thereof, weight or inherent elements of the goods or services available for electronic commerce, (b) Final selling price of the goods or services including tax, (c) Details of any additional charges for transporting or delivering goods, if applicable, (d) Information on precautions to be taken when using the goods or services, if any, (e) Time and date required for the delivery of goods or services, (f) Means or method of payment for the goods or services, (g) Duration and terms of warranty or guarantee, if any, for the goods or services, (h) Person, firm, company or entity producing the goods or providing the service, (i) If any goods or services are imported, the country of production or processing of such goods or services, (j) Details of any conditions to be observed after the purchase or sale of goods or services, (k) Whether purchased goods or services can be returned or not, and if returnable, the terms and period thereof, (l) If a service is sold, the place of receiving the service and the terms of sale, (m) Details regarding whether a buyer can cancel a request for goods or services before such goods are dispatched or services commence, (n) Production date, best-before/expiry date and other essential conditions for goods, (o) Main terms of the contract in a language understandable by the general public, and (p) Mechanism for addressing customer reviews, ratings, complaints and feedback. 7. **Contract Deemed to be Made:** (1) Where a contract is made electronically between a buyer and a businessperson, or between a seller and a businessperson, regarding the transaction of any goods or services pursuant to this Act, it shall be deemed to be a contract made pursuant to the prevailing law, and if any liability is created under such contract, the parties to the contract shall bear such liability. (2) When making a contract pursuant to

Sub-section (1), in addition to the provisions mentioned in the prevailing law relating to contracts, the businessperson shall disclose in such contract necessary information, terms and conditions including providing, cancelling, returning, exchanging, warranty and guarantee, and refund of the goods or services to the buyer. 8. Payment for Electronic Commerce: (1) While conducting electronic commerce pursuant to this Act, arrangements may be made for the buyer to make payment to the businessperson or, on behalf of the businessperson, to the carrier, before or after the purchase or delivery of the goods or services, or at the time of purchase or delivery.

If payment is made to the carrier in such manner, it shall be deemed that the businessperson has received the payment.

(2) While making payment of the amount pursuant to Sub-section (1), payment instruments pursuant to the prevailing Federal law relating to payment and settlement may be used.

(3) Where payment has been made pursuant to Sub-section (2), a bill invoice for the goods or services and an electronic or physical receipt for the payment made shall be immediately provided to the buyer, and a record thereof shall be kept. Payment made in such manner shall be deemed to have been duly made.

(4) Notwithstanding anything contained elsewhere in this Section, the purchase or sale of any goods or services in foreign currency shall be done subject to the prevailing Federal law. 9. Delivery of Goods or Services: (1) The businessperson shall deliver or cause to be delivered the requested goods or services to the buyer or their representative at the place specified in the contract with the buyer and within the specific day, time or period mentioned in the contract.

(2) When delivering goods or services pursuant to Sub-section (1), if the buyer or their representative wishes to receive them physically from any sales center of the businessperson, the goods or services shall be delivered to them from that same center.

(3) If goods or services are delivered pursuant to Sub-section (1) or (2), it shall be deemed that the goods or services have been duly delivered.

(4) Notwithstanding anything contained in Sub-section (2), if before the requested goods are dispatched, the buyer or the businessperson wishes to change the place, person, period or time of delivery, and if both parties agree on the matter, the businessperson shall deliver at the changed place, to the changed person, or within the changed period or time.

(5) If the place or period is changed pursuant to Sub-section (4), the fee therefor may be increased or decreased by mutual agreement between the buyer and the businessperson. 10.

Goods or Services May be Returned: (1) If any goods or services purchased by a buyer pursuant to this Act are not in accordance with the details provided by the businessperson according to Section 6, the buyer may return such goods or services to the businessperson without using them or causing damage. (2) If the buyer wishes to return goods or services pursuant to Sub-section (1), the businessperson shall accept the return of such goods or services without any condition. (3) Where goods or services are returned pursuant to Sub-section (1), if the buyer so desires, the businessperson may provide other goods or services of equal value in exchange for such goods or services. (4) If goods or services are returned pursuant to Sub-section (1) and the buyer refuses to take other goods or services in exchange for the returned goods or services pursuant to Sub-section (3), the businessperson shall refund to the concerned buyer the amount paid including tax when purchasing such returned goods or services. (5) Other provisions relating to return of

goods or services shall be as per the prevailing Federal law. 11. Export and Import May be Done: (1) Subject to the prevailing Federal law, any person, firm, company or entity may import goods or services by purchasing them from any foreign firm, company or entity conducting electronic commerce. (2) If a businessperson sells goods or services through an electronic platform operated within Nepal to any foreign person, firm, company or entity, such goods or services may be exported after payment is secured through the banking system, subject to mutual contract and the prevailing Federal law. 12. Personal Information to be Kept Confidential: (1) The businessperson shall maintain the confidentiality of personal information or personal details identifying any person related to electronic commerce. (2) Details to be kept confidential pursuant to Sub-section (1) shall not be given to anyone or used by oneself except as provided by the prevailing law. Provided that there shall be no bar to exchanging information related to transactions among the buyer, businessperson or carrier involved in the purchase and sale of goods or services under a contract. (3) The businessperson shall not deprive any user of the facility to enter the platform, enter, modify their personal details, and close the source identifying them. (4) If anyone does any act contrary to Sub-section (2), they shall be punished according to the prevailing law. 13.

Sale and Distribution Not to be Made: (1) Notwithstanding anything contained elsewhere in this Act, if a separate license is required or any condition or procedure must be fulfilled according to the prevailing law regarding the purchase and sale of a specific type of goods or services, such goods or services shall not be sold or transacted without obtaining such license or fulfilling such condition or procedure. (2) If goods or services are sold without obtaining a license or fulfilling a condition or procedure pursuant to Sub-section (1), action shall be taken according to the prevailing Federal law. Chapter-3 Liability of Parties Related to Electronic Commerce 14. Liability of Intermediary Businessperson: In addition to the liabilities mentioned elsewhere in the prevailing law and this Act, the liability of an intermediary businessperson shall be as follows:- (a) To mention details regarding goods or services placed for sale on the electronic platform pursuant to Section 6 in a true and clear manner so that the buyer can obtain them, and to trade only goods or services mentioned on such platform, (b) To keep the records of transactions of purchased and sold goods or services safe for the period determined in the prevailing tax law based on the nature of the goods or services, (c) If a warranty or guarantee has been given for the sold goods or services, to comply with or cause to comply with the terms of such warranty or guarantee for the mentioned period, (d) Not to discriminate between goods or services of the same category made available for sale by different sellers on the electronic platform, or to give priority to any particular seller for the sale of goods or services, Provided that if special facilities are provided to any seller or any goods or services among sellers or goods or services of a similar nature, the businessperson shall mention it on their platform in a way that the buyer can clearly obtain information about it. (e) To make an agreement with the seller who makes such goods or services available for sale before placing the goods or services for sale through the electronic platform, and (f) If the buyer wishes to return goods or services provided or facilitated by them that do not conform to the contract terms, to accept the return, exchange or refund of such goods or services according to the prevailing law. 15.

Liability of List-Based Electronic Commerce Businessperson: In addition to the liabilities mentioned elsewhere in the prevailing law and this Act, the liability of a list-based electronic commerce businessperson shall be as follows:- (a) To mention details pursuant to Section 6 on their platform in a clear and accessible manner for the buyer, (b) To mention notices and information required to be kept according to the prevailing law on their platform, (c) Not to review or rate the quality and characteristics of goods or services placed for sale on the platform by presenting themselves or any other person as a fake consumer, and not to enter feedback, (d) Not to present advertisements of goods or services placed for sale in a manner that misleads the buyer or consumer regarding the actual characteristics, method of use and other details of such goods or

services, (e) To keep records of transactions of purchased and sold goods or services safe for the period determined in the prevailing tax law based on the nature of the transaction, (f) To deliver or provide sold goods or services without delay beyond the predetermined time, except in cases of force majeure, (g) If there is a warranty or guarantee for the sold goods or services, to comply with the terms of such warranty or guarantee for the mentioned period, (h) If the sold goods or services are not as displayed or as mutually agreed, or are delivered later than the predetermined time, or are defective, to accept the return, cancel or stop such goods or services that were sold or approved for sale, and refund the payment made therefor to the concerned buyer, and (i) If a commitment has been publicly made regarding the authenticity of any goods or services sold, and any question arises regarding that matter resulting in liability, to bear such liability. 16.

Liability of Seller: In addition to the liabilities mentioned elsewhere in the prevailing law and this Act, the liability of a seller shall be as follows:- (a) To make a written or electronic contract with the intermediary businessperson before making goods or services available for sale through the electronic platform of the intermediary businessperson, (b) To provide to the intermediary businessperson, in writing or by electronic means, the proof of business registration according to the prevailing law, documents, name, address, mechanism for collecting and addressing consumer complaints, details regarding exchange or return of goods or services and refund, and details of registration with Permanent Account Number or Value Added Tax, (c) To provide to the intermediary businessperson the details pursuant to Section 6 regarding each goods or service to be sold through the electronic platform, (d) To deliver or provide sold goods or services without delay beyond the predetermined time, except in cases of force majeure, (e) Not to engage in any kind of unfair trade practice when making goods or services available to the intermediary businessperson for sale through the electronic platform or in any other circumstances, (f) Not to review or rate the quality of goods or services made available for sale to the intermediary businessperson by presenting themselves or any other person as a fake consumer, and not to enter feedback, and (g) If goods or services made available by the seller for sale through the intermediary businessperson are not as displayed or as mutually agreed, or are delivered later than the predetermined time, or are defective, to accept the return, cancel or stop such goods or services that were sold or approved for sale, and refund the payment made therefor to the concerned buyer. 17. Liability of Buyer: (1) When purchasing goods or services through electronic means pursuant to this Act, the buyer shall bear the liability as per the contract made between the buyer and the businessperson. (2) While conducting electronic commerce pursuant to this Act, the buyer shall not do or cause to do any act with the intention of causing trouble to anyone. (3) The buyer shall check, see and ascertain whether goods or services purchased through electronic means pursuant to this Act have been received as per the contract made at the time of purchase, and if there is any complaint, shall make a complaint as soon as possible, including through electronic means. 18.

Liability Relating to Transportation: (1) Where a contract is made to deliver requested goods or services to the place, time and person specified by the buyer, the liability to transport or provide the service according to such contract shall be of the businessperson, notwithstanding anything contained in the prevailing law. (2) For transporting goods or delivering services pursuant to Sub-section (1), the businessperson may make a separate contract with a carrier. (3) The liability of a carrier mentioned in the prevailing law relating to consumer protection shall apply equally to a carrier under this Act. (4) If anyone does any act contrary to Sub-section (3), they shall be punished according to the prevailing law relating to consumer protection. 19.

Unfair Trade or Business Activities Not to be Done: (1) While conducting electronic commerce pursuant to this Act, the seller, businessperson or other party shall not do or cause to do any act that is deemed to be an unfair trade or business activity according to the prevailing law. (2) If any act is done or caused to be done contrary to Sub-section (1), action shall be taken according to the prevailing law. 20. No Exemption from

**Liability:** Notwithstanding anything contained elsewhere in this Act, if any complaint pursuant to Section 28 or any grievance pursuant to Section 33 is received regarding any goods or services provided or sold by a businessperson through their electronic platform, the businessperson shall not be exempt from the liability to address such complaint or grievance solely on the ground that they did not produce, import or provide the sold goods or services.

**Chapter-4 Offenses and Penalties**

**21. Deemed to have Committed an Offense:** If anyone does or causes to do the following acts, they shall be deemed to have committed an offense under this Act:- (a) Conducting electronic commerce without establishing an electronic platform pursuant to Section 4, (b) Operating a business without listing pursuant to Section 5, (c) Conducting electronic commerce without disclosing details regarding goods or services pursuant to Section 6, (d) Failing to fulfill the liability or doing any act violating the liability pursuant to Clauses (a), (b) and (e) of Section 14; Clauses (a), (b), (e) and (f) of Section 15; and Clauses (a), (b), (c) and (d) of Section 16, or (e) Failing to fulfill the liability or doing any act violating the liability pursuant to Clauses (c), (d) and (f) of Section 14; Clauses (c), (d), (g), (h) and (i) of Section 15; and Clauses (e), (f) and (g) of Section 16.

**22.**

**Fine May Be Imposed:** (1) For an offense pursuant to Clause (a), (b), (c) or (d) of Section 21, the Inspecting Officer may, based on the gravity of the offense, impose a fine ranging from twenty thousand rupees to one hundred thousand rupees. (2) If any party is dissatisfied with the fine imposed by the Inspecting Officer pursuant to Sub-section (1), they may appeal to the Director General within seven days from the date of receipt of the order of fine. (3) The Director General shall decide on the appeal received pursuant to Sub-section (2) and the complaint received pursuant to Section 28 within thirty-five days, and such decision shall be final.

**23. Punishment:** If anyone commits or causes to commit an offense under Clause (e) of Section 21, based on the gravity of the offense, there shall be a fine ranging from fifty thousand rupees to five hundred thousand rupees or imprisonment ranging from six months to three years, or both.

**24. Investigation and Diary of Case:** (1) The Inspecting Officer shall investigate an offense punishable under Section 23. (2) After the investigation work is completed pursuant to Sub-section (1), the Inspecting Officer shall submit it to the concerned government attorney for a decision on whether or not to prosecute, and if the government attorney decides to prosecute, the Inspecting Officer shall file the case in the concerned Consumer Court pursuant to the prevailing law, or in the absence of such court, in the concerned District Court.

**25. Government of Nepal to be Plaintiff:** In a case of an offense punishable under Section 23, the Government of Nepal shall be the plaintiff.

**26. Summary Procedure to be Followed:** While conducting proceedings and adjudicating a case filed under Section 24, the summary procedure as per the prevailing Federal law shall be followed.

**Chapter-5 Miscellaneous**

**27. Monitoring and Inspection of Electronic Commerce:** (1) The Department shall carry out monitoring and inspection of electronic commerce. (2) In addition to Sub-section (1), if there is a provision for monitoring and inspection of any goods or services by a separate body or officer according to the prevailing law, the monitoring and inspection of such goods or services shall be done accordingly. (3) If any irregularity is found in the electronic platform or related arrangements while monitoring and inspecting pursuant to Sub-section (1) or (2), the Department or the body or officer conducting the monitoring and inspection may give necessary directives, and it shall be the duty of the businessperson to comply with such directives.

**28.**

**Complaint May Be Filed:** (1) If anyone does any act contrary to this Act, anyone who has knowledge of such matter may file a complaint with the Director General or the Inspecting Officer, along with the information or evidence they possess. Such complaint may also be filed through electronic means. (2) If the person filing a complaint pursuant to Sub-section (1) wishes to keep their name confidential, the name of such person shall be kept confidential. (3) Notwithstanding anything contained in Sub-section (1), if during the course of monitoring it is found that any businessperson or other person has done any act contrary to this Act, or if a

grievance from anyone is received regarding the same, the monitoring report or grievance shall also be treated as a complaint. (4) If it appears that further investigation is required on a complaint received by the Director General pursuant to Sub-section (1) or (3), he/she shall send such complaint to the concerned Inspecting Officer for taking action under this Act. (5) The Inspecting Officer shall investigate the complaint received pursuant to Sub-section (1), (3) or (4) within six months, and if it is a matter that can be fined by themselves, impose a fine, and if it is a matter for prosecution, take action to prosecute according to this Act. (6) If it appears that action on a complaint received under this Section should be taken by another body, the Director General or the Inspecting Officer shall send a letter to the concerned body as soon as possible for action. (7) Upon receiving a letter for action pursuant to Sub-section (6), the concerned body shall take action according to the prevailing law and inform the Department thereof. 29. Coordination to be Made: While monitoring and inspecting the electronic platform or related arrangements, the Department shall coordinate with the body of the Government of Nepal regulating information technology matters according to the prevailing law, and do such work including subject experts. 30. Standards to be Followed: If the body of the Government of Nepal regulating information technology determines and implements necessary standards according to the prevailing law for the improvement and upgrading of electronic platforms, the concerned businessperson shall comply with such standards. 31.

As per Consumer Protection Act: Except as mentioned in this Act, provisions relating to the quality of goods or services, labels to be affixed on goods, procedure and basis for returning sold goods, price determination of goods or services, inquiry, inspection and monitoring procedure, resolution of consumer disputes, compensation and basis for determining compensation, and other provisions relating to consumer rights, interests or protection shall be as provided in the prevailing law relating to consumer protection, and the provisions of such law shall apply mutatis mutandis in relation to goods or services transacted electronically under this Act as if they were included in this Act. 32. Directives May Be Given: (1) To make the operation and management of electronic commerce more effective under this Act, the Department may give necessary directives to the businessperson. (2) If there is a provision that a specific type of goods or service is regulated by a separate body or officer according to the prevailing law, such body or officer may also give directives pursuant to Sub-section (1). (3) It shall be the duty of the concerned businessperson to comply with the directives given pursuant to Sub-section (1) or (2). 33.

Grievance Management: (1) If a buyer or consumer is dissatisfied after purchasing any goods or services from any businessperson, or after initiating the purchase process, they may make a grievance through electronic means, by written notice, or by appearing in person before the responsible person or unit designated for hearing grievances by the businessperson. (2) If any grievance is received pursuant to Sub-section (1), the businessperson shall register such grievance and immediately inform the buyer or consumer thereof through electronic or other means. (3) If a grievance is received pursuant to Sub-section (1), the businessperson shall investigate the matter and render a decision within fifteen days. (4) While investigating a grievance pursuant to Sub-section (3), if it is necessary to request additional information from the buyer or consumer regarding the matter, the responsible person or unit hearing the grievance may request such information. (5) If the grievance of the buyer or consumer can be addressed, the responsible person or unit hearing the grievance shall do so accordingly, and if it cannot be addressed, they shall provide written information with reasons to the concerned buyer or consumer within fifteen days from the date of receipt of the grievance. (6) The businessperson shall develop and implement an electronic system-based mechanism (online redressal mechanism) for grievance management under this Section. 34. Deemed to be Done by the Businessperson Itself: Electronic commerce conducted by an employee, worker or representative on behalf of a businessperson under this Act shall be deemed to be done by the



businessperson itself. 35. Discount, Facility or Concession May Be Given: The Government of Nepal may, by publishing a notice in the Nepal Gazette, provide necessary discounts, facilities or concessions to micro, household and small industries that transact goods or services produced in Nepal exceeding the limit specified by the Ministry through an electronic platform, or that sell their own products. 36. No Bar to Prosecution under Prevailing Law: If an act deemed to be an offense under this Act is also deemed to be an offense under other prevailing law, this Act shall not be deemed to bar prosecution under such law. 37. Directives May Be Issued: The Ministry may, as necessary, issue directives for the implementation of this Act. 38. Evaluation of Act Implementation: The Ministry shall evaluate the implementation of this Act within five years of its commencement and thereafter within one year of the completion of each five-year period, and a report thereof shall be submitted to the relevant committee of both houses of the Federal Parliament.